

TENTATIVE RULING

Case: **Surebuilt Construction, Inc. v. Thoele**
Case No. CV-2025-1723

Hearing Date: **February 26, 2026** **Department Eleven** **9:00 a.m.**

The Court, in its discretion, considers plaintiff Surebuilt Construction, Inc.’s untimely opposition. (Code Civ. Proc., § 1005, subd. (b); Cal. Rules of Court, rule 3.1300(d); *Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker* (2016) 2 Cal.App.5th 252, 262 [stating that “a trial court has broad discretion to accept or reject late-filed papers”].)

Defendants Thoele and Katherine Marin’s request for judicial notice is **GRANTED**. (Evid. Code, §§ 452, 453.)

Defendants’ demurrer to complaint is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) First, defendants have not established that plaintiff improperly served the mechanics lien. (Civ. Code, § 8416; Complaint, ¶ 3; Defendants’ RJN, Exhibit A & B.) Second, defendants have failed to show that, based on the complaint and matters judicially noticeable, the mechanic’s lien expired by operation of law before plaintiff initiated this action. (Civ. Code, § 8460; see *Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604-605; Complaint, ¶¶ 6-7 & 17-24; Defendants’ RJN, Exhibit C.)

Defendants shall answer plaintiff’s complaint by no later than **March 6, 2026**. (Cal. Rules of Court, rule 3.1320(g), (j).)

The notice of motion provides notice of this Court’s tentative ruling system. However, the notice does not contain the required language pursuant to Local Rule 11.2(b) (as amended, eff. Jan. 1, 2023). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.